

Court No. - 37

Case :- WRIT - C No. - 9148 of 2014

Petitioner :- M/S Avs Roto Pack Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Smt. Komal Khare, Somesh Khare

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Vineet Saran, J.

Hon'ble Attau Rahman Masoodi, J.

On the request made by Dr. S.K. Yadav, learned counsel for the contesting respondent no.3 and 4, put-up as fresh on 19.2.2014 so as to enable him to obtain instructions or to file counter affidavit.

Order Date :- 13.2.2014

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(Attau Rahman Masoodi, J.) (Vineet Saran, J.)

Court No. - 37

Case :- WRIT - C No. - 9148 of 2014

Petitioner :- M/S Ays Roto Pack Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Smt. Komal Khare, Somesh Khare

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Vineet Saran, J.

Hon'ble Attau Rahman Masoodi, J.

Learned Standing Counsel has accepted notice for respondents no.1, 2 and 5 and Dr. S.K.Yadav for respondents no.3 and 4. They pray for and are granted a month's time to file counter affidavit. The petitioners shall have two weeks thereafter to file rejoinder affidavit. List immediately thereafter.

Considering the facts and circumstances of this case, it is directed that the recovery from the petitioners in pursuance of the impugned demand dated 28.2.2013 issued by the Tehsildar, Tehsil Sadar, District Kanpur Nagar and the amended letter dated 10.12.2013 issued by the Executive Engineer, Nagar Vidyut Vitram Khand, Dadanagar, Kanpur, respondent no.3 shall remain stayed provided the petitioners deposit a sum of Rs. One lac with the respondent no.3 within a period of one month from today. In case of default, this interim order shall stand automatically vacated.

Order Date :- 19.2.2014

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(Attau Rahman Masoodi, J) (Vineet Saran, J)

Court No. - 39

Case :- WRIT - C No. - 9148 of 2014

Petitioner :- M/S Ays Roto Pack Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Smt. Komal Khare, Somesh Khare

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Sanjay Misra, J.

Hon'ble Anant Kumar, J.

Learned Standing Counsel for the State-respondents as also learned counsel for the Respondent No.4 pray for and are granted two weeks further time to file counter affidavit.

Order Date :- 7.4.2014

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Court No. - 39

Case :- WRIT - C No. - 9148 of 2014

Petitioner :- M/S Ays Roto Pack Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Smt. Komal Khare, Somesh Khare

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Sanjay Misra, J.

Hon'ble Anant Kumar, J.

Cause list has been revised. Learned Standing Counsel for the State respondents is present. None appears on behalf of the private respondents.

Counter affidavit has not been filed although time was granted on earlier occasions.

Learned counsel for the respondents may file counter affidavit within four weeks.

Learned counsel for the petitioners may inform to Sri S.K. Yadav about passing of this order in writing within three days.

Order Date :- 22.5.2014

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Court No. - 39

Case :- WRIT - C No. - 9148 of 2014

Petitioner :- M/S Ays Roto Pack Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Smt. Komal Khare, Somesh Khare

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Passed over on the illness slip of Sri Somesh Khare, learned counsel for the petitioner.

Order Date :- 23.7.2014

Ashok Kr.

Court No. - 39

Case :- WRIT - C No. - 9148 of 2014

Petitioner :- M/S Ays Roto Pack Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Smt. Komal Khare, Somesh Khare

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Tarun Agarwala, J.

Hon'ble Shri Narayan Shukla, J.

Case is passed over on the illness slip of learned counsel for the respondent.

Order Date :- 9.10.2014

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(Shri Narayan Shukla, J.) (Tarun Agarwala, J.)

Court No. - 39

Case :- WRIT - C No. - 9148 of 2014

Petitioner :- M/S Ays Roto Pack Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Smt. Komal Khare, Somesh Khare

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Tarun Agarwala, J.

Hon'ble Shri Narayan Shukla, J.

The case is passed over on the illness slip of the learned counsel for the petitioner.

Order Date :- 19.11.2014

MAA/-

(Shri Narayan Shukla, J.)

(Tarun Agarwala, J.)

Court No. - 39

Case :- WRIT - C No. - 9148 of 2014

Petitioner :- M/S Ays Roto Pack Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Smt. Komal Khare, Somesh Khare

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Tarun Agarwala, J.

Hon'ble Dr. Satish Chandra, J.

Two weeks time is allowed to the respondents to file counter affidavit.

Order Date :- 10.12.2014

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(Dr. Satish Chandra, J.) (Tarun Agarwala, J.)

Court No. - 32

Case :- WRIT - C No. - 9148 of 2014

Petitioner :- M/S Ays Roto Pack Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Smt. Komal Khare, Somesh Khare

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Tarun Agarwala, J.

Hon'ble Amar Singh Chauhan, J.

The case is passed over on the illness slip of the learned counsel for the petitioner.

Order Date :- 27.3.2015

MAA/-

(Amar Singh Chauhan, J.)

(Tarun Agarwala, J.)

Court No. - 32

Case :- WRIT - C No. - 9148 of 2014

Petitioner :- M/S Ays Roto Pack Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Smt. Komal Khare, Somesh Khare

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Tarun Agarwala, J.

Hon'ble Manoj Kumar Gupta, J.

Continuous illness slip is being sent by one or the other learned counsel. Today also the learned counsel for the petitioner has sent the illness slip.

List peremptorily in the next cause list.

Order Date :- 13.4.2015

MAA/-

(Manoj Kumar Gupta, J.)

(Tarun Agarwala, J.)

Court No. - 32

Case :- WRIT - C No. - 9148 of 2014

Petitioner :- M/S Avs Roto Pack Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Smt. Komal Khare, Manish
Goyal, Somesh Khare

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Tarun Agarwala, J.

Hon'ble Pratyush Kumar, J.

Supplementary affidavit filed today is taken on record.

Two weeks time is allowed to the respondents to file supplementary counter affidavit.

List peremptorily thereafter.

The name of Sri Siddharth Singhal shall be shown as counsel for the petitioner.

Order Date :- 27.4.2015

Bhaskar

(Pratyush Kumar, J.)

(Tarun Agarwala, J.)

Court No. - 39

Case :- WRIT - C No. - 9148 of 2014

Petitioner :- M/S Avs Roto Pack Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Smt. Komal Khare, Manish
Goyal, Somesh Khare

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Dilip Gupta, J.

Hon'ble Mahesh Chandra Tripathi, J.

List peremptorily in the next cause list.

Order Date :- 27.8.2015

Jaswant

(M.C. Tripathi, J.) (Dilip Gupta, J.)

Court No. - 39

Case :- WRIT - C No. - 9148 of 2014

Petitioner :- M/S Ays Roto Pack Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Smt. Komal Khare, Manish Goyal, Somesh Khare

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Dilip Gupta, J.

Hon'ble Vinod Kumar Misra, J.

Case has been called out. Learned counsel for the petitioners is present but learned counsel for the respondents has not appeared.

List in the next cause list peremptorily.

Order Date :- 17.9.2015

A. Pt. Singh

(Vinod Kumar Misra, J.) (Dilip Gupta, J.)

Court No. - 3

Case :- WRIT - C No. - 9148 of 2014

Petitioner :- M/S Ays Roto Pack Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Smt. Komal Khare, Manish Goyal, Somesh Khare

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Krishna Murari, J.

Hon'ble Raghvendra Kumar, J.

Passed over on the request made on behalf of Sri Manish Goyal,
learned counsel appearing for the petitioners.

Order Date :- 26.10.2015

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Court No. - 21

Case :- WRIT - C No. - 9148 of 2014

Petitioner :- M/S Avs Roto Pack Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Smt. Komal Khare, Manish Goyal, Somesh Khare

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble V.K. Shukla, J.

Hon'ble Prabhat Chandra Tripathi, J.

On the request of Dr. S.K. Yadav, learned counsel for the respondents case is passed over today.

List in the next cause list.

Order Date :- 29.4.2016

S.Sharma

Court No. - 21

Case :- WRIT - C No. - 9148 of 2014

Petitioner :- M/S Ays Roto Pack Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Smt. Komal Khare, Manish Goyal, Somesh Khare

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble V.K. Shukla, J.

Hon'ble Mahesh Chandra Tripathi, J.

On the matter being taken up, Dr. S.K. Yadav Advocate, submits that he has filed counter affidavit on 16.1.2015. The same is not on record.

Office is directed to trace out the said counter affidavit and place the same on record.

List in the next cause list.

Order Date :- 5.9.2016

Ram Murti

Court No. - 21

Case :- WRIT - C No. - 9148 of 2014

Petitioner :- M/S Avs Roto Pack Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Smt. Komal Khare, Manish Goyal, Somesh Khare

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble V.K. Shukla, J.

Hon'ble Mahesh Chandra Tripathi, J.

List in the next cause list.

Order Date :- 16.9.2016

T.S.

Court No. - 21

Case :- WRIT - C No. - 9148 of 2014

Petitioner :- M/S Avs Roto Pack Pvt. Ltd. And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Smt. Komal Khare, Manish Goyal, Somesh Khare

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble V.K. Shukla, J.

Hon'ble Mahesh Chandra Tripathi, J.

On the matter being taken up today, we have seen the office report in question and as per office report, counter affidavit is not traceable. In view of this, we have permitted Shri S.K. Yadav, Advocate to bring on record xerox copy of the counter affidavit that has been served upon Shri Manish Goyal, Advocate and rejoinder affidavit to the same has also been filed. The xerox copy of the counter affidavit is accepted and taken on record and is treated as counter affidavit. In case during this period, the said counter affidavit is traced out by the office, the same will be placed on record.

Petitioner-M/s A.V.S. Roto Pack Pvt. Ltd. and another through its Director Ambrish Kumar Chaurasia is before this Court assailing the validity of recovery proceedings initiated by Tehsildar, Sadar, Kanpur Nagar asking the petitioners to ensure deposit of the said amount in question within a week, failing which action would be taken as per law. Petitioners have also proceeded to question the validity of the demand dated 10.12.2013 issued by Executive Engineer, Dadarnagar Khand, KESCO, Kanpur, wherein petitioners have been informed that on the basis of representation made by him, the amount in question has been modified and accordingly, in case the said amount in question has been deposited, receipt of the same be deposited.

On the presentation of the Writ Petition in question, this Court on 19.02.2014 proceeded to pass an order according interim order in favour of the petitioners subject to the condition that petitioners deposit a sum of Rs.1 lac with the Executive Engineer, Nagar Vidut Vitaran, Dadanagar, Kanpur.

Petitioners have tried to contend before this Court that petitioner is a private limited company engaged in manufacturing and printing of Packaging pouches, meant to be utilized for the various Pan Masala and Gutka manufacturers and on account of orders passed by the Apex Court on 07.12.2010, as plastic pouches have been banned, their business came to stand still. Petitioners have proceeded to mention that in order to run the factory in question, they had taken electricity connection from KESCO, Kanpur. Petitioners have also proceeded to mention that they have taken cash credit limit facility and a term loan from Bank of India. Petitioners submit that as the amount in question could not be repaid, the proceedings under Section 13(4) of SARFAESI Act, 2002 have been initiated and the possession of the property had been undertaken 06.09.2011 by the concerned bank. Petitioners have stated that as possession of the petitioners' factory had already been taken on 06.09.2011, petitioners applied for permanent disconnection of electricity connection. Petitioners have contended that the said application for permanent disconnection dated 30.09.2011 has been moved by petitioners in tune with the provisions as is contained under Clause 4.14 of U.P. Electricity Supply Code 2005. Petitioners have proceeded to mention that no action was taken on the said application and on the other hand, bills were issued and ultimately demand letter has been issued. Thereafter, petitioners have objected to the same and then the amount in question has been modified to Rs.2,59,000/-. Petitioners are submitting before us that no amount is due to be paid and accordingly, demand made is *per-se* bad.

Counter Affidavit has been filed in the present case and in the said Counter Affidavit mention has been made that the respondents issued bill for the period with effect from 19.11.2011 to 20.12.2011 of Rs.1,04,479/-, out of which Rs.65,000/- was deposited as part payment by the petitioners through Cheque in the month of November but same was also dishonoured by the Bank. The said amount of Rs.32,000/- was part payment of the bill that has been so raised before preparation of final bill of disconnection which is not in pursuance of Clause 4.14 (G) to effect a permanent disconnection. It has also been mentioned therein that on application being filed by petitioners on 30.09.2011 for permanent disconnection

before the District Magistrate, Kanpur Nagar, the Authority concerned forwarded the said application before the Executive Engineer, Nagar Vidyut Vitran Khand Dadanagar, Kanpur and after receiving the aforesaid application, the answering respondents initiated spot inspection and on 31.01.2012 temporarily disconnected the connection of the petitioners and thereafter final bill was prepared by the Executive Engineer, Nagar Vidyut Vitran Khand Dadanagar, Kanpur, which was sent to the petitioners. It has been further mentioned that on 06.09.2011, the Bank issued a possession notice to the petitioners but the Bank did not took physical possession over the factory of the petitioners and they itself submitted an application for permanent disconnection on 30.09.2011 and after receiving the aforesaid application of the petitioners, respondents initiated spot inspection of the factory of the petitioners and temporarily disconnected the connection of the petitioners on 31.01.2012. Petitioners, thereafter, have deposited the aforesaid amount, which was mentioned in para 25 and 26 through Cheque but out of Rs.82,000/-, Cheque of Rs.65,000/- was already dishonoured by the Bank. After receiving the demand notice issued to the petitioners as well as Tehsil authority, the representative of the petitioners submitted an application before the Chief Engineer, KESCO and after considering the facts stated in the aforesaid representation as the sum of amount, which was already deposited by the petitioners, has not been adjusted the petitioners in the recovery amount and thereafter petitioners have moved an application by which he has informed that some amount which was deposited by him including security amount at the time of issuing connection shall be adjusted therefore, after hearing the petitioners and considering the receipt, the respondent Authorities modified the earlier bill amount of Rs.4,05,107/- to Rs.2,59,618/-. The connection of petitioners was temporarily disconnected on 31.01.2012 and auction was held by the Bank on 28.05.2012 so the petitioners are bound to pay the arrears of bill since 31.01.2012. The communication order dated 28.02.2013 as well as modified demand notice dated 10.12.2013 was made on the request of the petitioners by which he submitted that the security amount as well as some part of bill amount was deposited by him, has not been adjusted in the final bill so after affording opportunity of hearing to the petitioners, the

answering respondents adjusted the security as well as some further amount which was already deposited by the petitioners and modified the earlier demand notice and issue modified notice under Section 3 of Act, 1958.

To this Counter Affidavit, Rejoinder Affidavit has been filed and therein mention has been made that there is no provision for temporary disconnection and the requisite procedure has not been followed and it was fully arbitrary on the part of the KESCO to allow for meter to run for one year and four months and then raise the final bill. The petitioners have already deposited 10% of recovery amount into Tehsil and in view of this, action is contrary to law and as such, interference is required to be made by this Court.

Counsel for the petitioners have submitted before this Court that in the present case, once the possession of factory in question had already been taken over by the concerned Bank and application in question has already been moved, then thereafter for any subsequent period, petitioners could not be held responsible and in view of this, the demand that has been so made is per-se bad and cannot be fastened upon the shoulders of petitioners.

Dr. S.K. Yadav, Advocate representing KESCO, on the other hand, has contended that whatever demand has been made, the same is strictly in consonance with the provisions of Electricity Act, 2003 read with provisions of Electricity Supply Code, 2005 and in view of this, no interference should be made by this Court.

After respective arguments have been advanced, the factual situation that is so emerging before us is that there is a serious dispute in respect of the bill in question that has been so raised, inasmuch as, petitioners, on the one hand, are contending before this Court that no bill ought to have been raised after he had proceeded to move an application for permanent disconnection in question and KESCO, on the other hand, is contending that at no point of time the Bank had ever taken possession of the factory in question and the fact of the matter is that auction took place on 28.05.2012 and temporary disconnection followed on 31.01.2012.

Once such is the factual dispute that is being so raised before us and the recovery in question is being pressed under the provisions of U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958 as amended from time to time, then under the aforesaid Act there is a provision that the consumer shall deposit the amount in question and shall file suit for recovery of amount thereafter in case any grievance is there on the front of excess payment.

Once such is the factual situation that is so emerging, then, for all sort of disputed questions of fact being raised, petitioners can always file suit under the provisions of U.P. Government Electrical Undertaking (Dues Recovery) Act or alternatively being consumer under of The Electricity Act, 2003 read with Electricity Supply Code, 2005 wherein under clause 7.10, there is a Consumer Grievance Redressal Forum & Ombudsman wherein the consumer can proceed to lodge his complaint against the action of in respect of matter mentioned in clauses 7.7.1 and 7.7.5 or those covered in the said Regulations and thereafter the licensee is obligated to settle the complaint of the consumer within time limit specified in the Code and in case consumer is not satisfied with the decision of licensee, the consumer may file complaint before the Consumer Grievance Forum as per specified the procedure specified under the said Regulations.

Once there are alternative forum provided for remedying the situation and answering such disputed questions of fact, then, in our considered opinion, we are not at all entertaining the request that has been so made under Article 226 of the Constitution of India but we certainly leave it open to the petitioners to avail the remedy that is provided for getting their dispute settled and in case petitioners do not intent to enter into such dispute and intend to have installment facility for making payment that is due, then petitioners can always approach the Authority concerned for making payment in installment based on financial conditions as is provided for under Clause 6.14 of Electricity Supply Code, 2005.

With this, present Writ Petition stands ***disposed of***.

Order Date :- 26.9.2016

A. Pandey